

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

5. JORDAN NICHOLE KIDD V. ANDREW CHRISTAIN KIDD

22FL1141

On April 22, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, spousal support, child support, attorney's fees and imputation of income. She filed her Income and Expense Declaration concurrently therewith. The RFO, Income and Expense Declaration, and the referral to Child Custody Recommending Counseling (CCRC) were served by mail on DCSS; however, the Proof of Service does not specify the date the documents were mailed and it appears the required blank FL-320 and Notice of Tentative Ruling were not served. The same documents were electronically served on Respondent on May 4, 2026. Again, however, not all of the required documents were served.

Judgment was entered in this matter on May 5, 2026 pursuant to the Marital Settlement Agreement (MSA) entered into between the parties. The MSA included orders for spousal support, child support, child custody, and visitation. The MSA also specifies that "DCSS shall continue to exercise jurisdiction over child support."

DCSS filed a Responsive Declaration to Request for Order on May 22nd. It was mailed on May 21st.

The parties attended CCRC on May 28, 2026. They reached some agreements but could not agree on all issues. A report with the agreements and recommendations was prepared and mailed to the parties on August 5, 2026.

Respondent filed and served his Responsive Declaration to Request for Order on August 21st. He did not file and serve his Income and Expense Declaration until September 1st. The court finds this to be late filed and therefore has not read or considered it.

On August 21st Petitioner filed and served "Petitioner's Response to CCRC Report of August 5, 2026."

Petitioner requests joint legal custody and a referral to CCRC to set a visitation schedule. She asks that she be the primary custodial parent since Respondent relocated to Brentwood, CA. She further requests guideline child support for each child and spousal support based on an imputation of income to Respondent based on his 2024 income. She further requests \$25,000 in need-based attorney's fees.

Respondent asks the court to deny the requested modification to custody and visitation. He further asks that the current child and spousal support orders remain in

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place with no modification. Finally, he asks the court to deny Petitioner's request for attorney's fees and instead sanction Petitioner in the amount of \$2,500.

DCSS asks that the issue of child support be continued to be heard in Department 10 by the Child Support Commissioner.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the August 5, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modification. Section 1(a) of the Parenting Plan section shall be amended to state that Father's parenting time shall be on the 1st, 4th, and 5th weekends for the times specified in the CCRC report and Mother shall have the remainder of the time.

Because DCSS is providing child support enforcement services in this matter, the issues of child support and imputation of income are continued to the DCSS calendar in Department 10 to be heard by the child support commissioner on Monday, October 12th at 8:30 AM in accordance with Family Code § 4251.

Regarding the request for spousal support, the request is denied. This is a post-judgment request for spousal support orders and, generally speaking, the court is required to take evidence on, and address the Family Code § 4320 factors when ruling on a post-judgment request for modification of spousal support. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975). Here, after reviewing the filings of the parties as outlined above the court finds that Petitioner has failed to establish any change in circumstances which would warrant a change to spousal support. The request is therefore denied.

Finally, turning to the issue of attorney's fees, the parties are ordered to appear to address the issue of attorney's fees.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE AUGUST 5, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING

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MODIFICATION. SECTION 1(A) OF THE PARENTING PLAN SECTION SHALL BE AMENDED TO STATE THAT FATHER'S PARENTING TIME SHALL BE ON THE 1ST, 4TH, AND 5TH WEEKENDS FOR THE TIMES SPECIFIED IN THE CCRC REPORT AND MOTHER SHALL HAVE THE REMAINDER OF THE TIME.

BECAUSE DCSS IS PROVIDING CHILD SUPPORT ENFORCEMENT SERVICES IN THIS MATTER, THE ISSUES OF CHILD SUPPORT AND IMPUTATION OF INCOME ARE CONTINUED TO THE DCSS CALENDAR IN DEPARTMENT 10 TO BE HEARD BY THE CHILD SUPPORT COMMISSIONER ON MONDAY, OCTOBER 12TH AT 8:30 AM IN ACCORDANCE WITH FAMILY CODE § 4251.

REGARDING THE REQUEST FOR SPOUSAL SUPPORT, THE REQUEST IS DENIED.

THE PARTIES ARE ORDERED TO APPEAR TO ADDRESS THE ISSUE OF ATTORNEY'S FEES.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.